

COMPARATIVE CONSTITUTIONAL DESIGN

COMPARE FUNCTIONS AND CONTEXTS → WRITTEN, UNWRITTEN, RIGID AND → PARLIAMENTARY, PRESIDENTIAL AND SEMI-PRESIDENTIAL → FEDERAL, UNITARY AND HYBRID → SUPREMACY, JUDICIAL REVIEW AND → RIGHTS, DUE PROCESS AND

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 COMPARE FUNCTIONS AND CONTEXTS, NOT COUNTRY LABELS

COMPARE FUNCTIONS AND CONTEXTS, NOT COUNTRY LABELS

ROOT QUESTION

WHY DOES THE SAME CONSTITUTIONAL INSTITUTION BEHAVE DIFFERENTLY AFTER

COMPARATIVE METHOD FUNCTION

SOURCE MODEL

INDIAN TEXT

SOCIAL/FEDERAL CONTEXT

JUDICIAL INTERPRETATION

ROOT QUESTION

Why does the same constitutional institution behave differently after transplantation?

COMPARATIVE METHOD function → source model → Indian text → social/federal context

Judicial interpretation → political practice → consequence.

CONSTITUTIONAL BASIS / ARTICLE

- ROOT QUESTION
- Why does the same constitutional institution behave differently after transplantation?

POWER / PROCEDURE

- COMPARATIVE METHOD function → source model → Indian text → social/federal context
- Judicial interpretation → political practice → consequence.

CHECK / LIMIT

- AXES codification/rigidity
- executive-legislative relation

FEDERAL / RIGHTS IMPACT

- federal distribution rights/remedies
- "borrowed from" without adaptation and purpose is a memory list, not constitutional analysis.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The same institution can operate differently because of party systems, conventions, federal structure, political history and judicial doctrine.

01

STAGE 01 WRITTEN, UNWRITTEN, RIGID AND FLEXIBLE CONSTITUTIONAL FORMS

WRITTEN, UNWRITTEN, RIGID AND FLEXIBLE CONSTITUTIONAL FORMS

UK UNCODIFIED

STATUTES + COMMON LAW + CONVENTIONS + AUTHORITATIVE PRACTICE

POLITICALLY FLEXIBLE UNDER PARLIAMENTARY SOVEREIGNTY.

USA CODIFIED, SUPREME AND COMPARATIVELY RIGID.

INDIA CODIFIED AND SUPREME; AMENDMENT ROUTES RANGE FROM SIMPLE

SOUTH AFRICA

GERMANY WRITTEN TRANSFORMATIVE/POST-AUTHORITARIAN CONSTITUTIONS WITH ENTRENCHED PRINCIPLES.

CONSTITUTIONAL BASIS / ARTICLE

- UK uncodified: statutes + common law + conventions + authoritative practice
- politically flexible under parliamentary sovereignty.

POWER / PROCEDURE

- USA codified, supreme and comparatively rigid.
- INDIA codified and supreme; amendment routes range from simple majority to special majority and State ratification.

CHECK / LIMIT

- SOUTH AFRICA / GERMANY written transformative/post-authoritarian constitutions with entrenched principles.
- CONTROL written != rigid; unwritten != lawless; flexibility and supremacy are separate variables.

FEDERAL / RIGHTS IMPACT

- UK uncodified: statutes + common law + conventions + authoritative practice
- politically flexible under parliamentary sovereignty.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: A constitutional scheme organises sovereignty, institutions, rights, territorial power and accountability, rather than merely listing provisions borrowed from foreign constitutions.

02

STAGE 02 PARLIAMENTARY, PRESIDENTIAL AND SEMI-PRESIDENTIAL EXECUTIVES

PARLIAMENTARY, PRESIDENTIAL AND SEMI-PRESIDENTIAL EXECUTIVES

UK PARLIAMENTARY FUSION

COLLECTIVE RESPONSIBILITY

NOMINAL/FORMAL HEAD DISTINCTION.

USA PRESIDENTIAL SEPARATION

FIXED TENURE

SEPARATELY ELECTED EXECUTIVE

LEGISLATIVE CHECKS.

INDIA / UK parliamentary fusion

USA presidential separation

FRANCE semi-presidential dual executive

collective responsibility

fixed tenure

directly elected President

confidence

separately elected executive

responsible Prime Minister cohabitation when parliamentary majority differs.

nominal/formal head distinction.

legislative checks.

CONSTITUTIONAL BASIS / ARTICLE

- INDIA / UK parliamentary fusion
- collective responsibility
- nominal/formal head distinction.
- USA presidential separation

POWER / PROCEDURE

- fixed tenure
- separately elected executive
- legislative checks.
- FRANCE semi-presidential dual executive

CHECK / LIMIT

- directly elected President
- responsible Prime Minister cohabitation when parliamentary majority differs.
- GERMANY constructive vote of no confidence strengthens parliamentary stability.
- SWITZERLAND collegial Federal Council and direct-democratic context.

FEDERAL / RIGHTS IMPACT

- Indian President != US President; parliamentary fusion != absence of checks.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Parliamentary, presidential and semi-presidential systems distribute executive legitimacy and legislative responsibility differently, producing distinct risks of instability, deadlock or dual authority.

03

STAGE 03 FEDERAL, UNITARY AND HYBRID DESIGN WITH UPPER HOUSES

FEDERAL, UNITARY AND HYBRID DESIGN WITH UPPER HOUSES

USA COORDINATE FEDERALISM

STATE EQUALITY IN SENATE

DUAL CITIZENSHIP/COURT FEATURES.

CANADA FEDERAL WITH STRONG-CENTRE AND RESIDUARY FEDERAL POWER INFLUENCES.

|                                                                                                                                                                                                                                                            |                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                           |                                                                                                                                                             |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------|
| USA presidential separation                                                                                                                                                                                                                                | fixed tenure                                                                                                                                                                                           | separately elected executive                                                                                                                                                                                                                                                                                                                              | legislative checks.                                                                                                                                         |
| FRANCE semi-presidential dual executive                                                                                                                                                                                                                    | directly elected President                                                                                                                                                                             | responsible Prime Minister cohabitation when parliamentary majority differs.                                                                                                                                                                                                                                                                              |                                                                                                                                                             |
| <b>CONSTITUTIONAL BASIS / ARTICLE</b> <ul style="list-style-type: none"><li>INDIA / UK parliamentary fusion</li><li>collective responsibility</li><li>nominal/formal head distinction.</li><li>USA presidential separation</li></ul>                       | <b>POWER / PROCEDURE</b> <ul style="list-style-type: none"><li>fixed tenure</li><li>separately elected executive</li><li>legislative checks.</li><li>FRANCE semi-presidential dual executive</li></ul> | <b>CHECK / LIMIT</b> <ul style="list-style-type: none"><li>directly elected President</li><li>responsible Prime Minister cohabitation when parliamentary majority differs.</li><li>GERMANY constructive vote of no confidence strengthens parliamentary stability.</li><li>SWITZERLAND collegial Federal Council and direct-democratic context.</li></ul> | <b>FEDERAL / RIGHTS IMPACT</b> <ul style="list-style-type: none"><li>Indian President != US President; parliamentary fusion != absence of checks.</li></ul> |
| ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Parliamentary, presidential and semi-presidential systems distribute executive legitimacy and legislative responsibility differently, producing distinct risks of instability, deadlock or dual authority. |                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                           |                                                                                                                                                             |

03

|                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                 |                                                                                                                                                                                                                                                     |                                                                                                                                                                                                            |
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| <b>STAGE 03</b> <b>FEDERAL, UNITARY AND HYBRID DESIGN WITH UPPER HOUSES</b>                                                                                                                                                                                                 |                                                                                                                                                                                                                                                                                 |                                                                                                                                                                                                                                                     |                                                                                                                                                                                                            |
| <b>FEDERAL, UNITARY AND HYBRID DESIGN WITH UPPER HOUSES</b> <b>USA COORDINATE FEDERALISM</b> <b>STATE EQUALITY IN SENATE</b> <b>DUAL CITIZENSHIP/COURT FEATURES.</b> <b>CANADA FEDERAL WITH STRONG-CENTRE AND RESIDUARY FEDERAL POWER INFLUENCES.</b>                       |                                                                                                                                                                                                                                                                                 |                                                                                                                                                                                                                                                     |                                                                                                                                                                                                            |
| <b>AUSTRALIA FEDERAL DIVISION + STRONG ELECTED SENATE + CONCURRENT/TRADE</b> <b>UNION/STATE/CONCURRENT LISTS</b> <b>UNION RESIDUARY POWER</b>                                                                                                                               |                                                                                                                                                                                                                                                                                 |                                                                                                                                                                                                                                                     |                                                                                                                                                                                                            |
| <b>CONSTITUTIONAL BASIS / ARTICLE</b>                                                                                                                                                                                                                                       | <b>POWER / PROCEDURE</b>                                                                                                                                                                                                                                                        | <b>CHECK / LIMIT</b>                                                                                                                                                                                                                                | <b>FEDERAL / RIGHTS IMPACT</b>                                                                                                                                                                             |
| USA coordinate federalism                                                                                                                                                                                                                                                   | AUSTRALIA federal division + strong elected Senate + concurrent/trade inspirations.                                                                                                                                                                                             | emergency centralisation                                                                                                                                                                                                                            | German Bundesrat represents Land governments.                                                                                                                                                              |
| State equality in Senate                                                                                                                                                                                                                                                    | Union/State/Concurrent Lists                                                                                                                                                                                                                                                    | UPPER HOUSES                                                                                                                                                                                                                                        | TRAP bicameral label does not imply identical federal representation.                                                                                                                                      |
| dual citizenship/court features.                                                                                                                                                                                                                                            | Union residuary power                                                                                                                                                                                                                                                           | Rajya Sabha population-weighted, indirectly elected and unequal                                                                                                                                                                                     |                                                                                                                                                                                                            |
| CANADA federal with strong-centre and residuary federal power influences.                                                                                                                                                                                                   | single citizenship integrated judiciary                                                                                                                                                                                                                                         | US Senate State-equal and appointment-confirming                                                                                                                                                                                                    |                                                                                                                                                                                                            |
| <b>CONSTITUTIONAL BASIS / ARTICLE</b> <ul style="list-style-type: none"><li>USA coordinate federalism</li><li>State equality in Senate</li><li>dual citizenship/court features.</li><li>CANADA federal with strong-centre and residuary federal power influences.</li></ul> | <b>POWER / PROCEDURE</b> <ul style="list-style-type: none"><li>AUSTRALIA federal division + strong elected Senate + concurrent/trade inspirations.</li><li>Union/State/Concurrent Lists</li><li>Union residuary power</li><li>single citizenship integrated judiciary</li></ul> | <b>CHECK / LIMIT</b> <ul style="list-style-type: none"><li>emergency centralisation</li><li>UPPER HOUSES</li><li>Rajya Sabha population-weighted, indirectly elected and unequal</li><li>US Senate State-equal and appointment-confirming</li></ul> | <b>FEDERAL / RIGHTS IMPACT</b> <ul style="list-style-type: none"><li>German Bundesrat represents Land governments.</li><li>TRAP bicameral label does not imply identical federal representation.</li></ul> |
| ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Upper Houses express federalism differently through unequal or equal State representation, selection methods and powers, so bicameralism alone does not establish federal equivalence.                                      |                                                                                                                                                                                                                                                                                 |                                                                                                                                                                                                                                                     |                                                                                                                                                                                                            |

04

|                                                                                                                                                                                                                                                                                                                                                                                                      |                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>STAGE 04</b> <b>SUPREMACY, JUDICIAL REVIEW AND CONSTITUTIONAL COURTS</b>                                                                                                                                                                                                                                                                                                                          |                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                |
| <b>SUPREMACY, JUDICIAL REVIEW AND CONSTITUTIONAL COURTS</b> <b>UK PARLIAMENTARY SOVEREIGNTY WITH RIGHTS AND DEVOLUTION QUALIFICATIONS.</b> <b>USA WRITTEN SUPREMACY + DIFFUSE JUDICIAL REVIEW THROUGH ORDINARY</b> <b>GERMANY SPECIALISED FEDERAL CONSTITUTIONAL COURT.</b>                                                                                                                          |                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                |
| <b>SUPREME COURT + HIGH COURTS EXERCISE DIFFUSE REVIEW, WRITS</b> <b>PARLIAMENT REMAINS CONSTITUTION-LIMITED.</b> <b>KESAVANANDA BHARATI (1973)</b> <b>BASIC STRUCTURE.</b>                                                                                                                                                                                                                          |                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                |
| UK parliamentary sovereignty with rights and devolution qualifications.                                                                                                                                                                                                                                                                                                                              |                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                |
| USA written supremacy + diffuse judicial review through ordinary courts. → GERMANY specialised Federal Constitutional Court. → Supreme Court + High Courts exercise diffuse review, writs and federal adjudication                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                |
| <b>CONSTITUTIONAL BASIS / ARTICLE</b> <ul style="list-style-type: none"><li>UK parliamentary sovereignty with rights and devolution qualifications.</li><li>USA written supremacy + diffuse judicial review through ordinary courts.</li><li>GERMANY specialised Federal Constitutional Court.</li><li>Supreme Court + High Courts exercise diffuse review, writs and federal adjudication</li></ul> | <b>POWER / PROCEDURE</b> <ul style="list-style-type: none"><li>Parliament remains Constitution-limited.</li><li>Kesavananda Bharati (1973) → basic structure.</li><li>Minerva Mills (1980) → limited amendment and FR-DPSP harmony.</li><li>First Judges Case (1981) → initial executive primacy.</li></ul> | <b>CHECK / LIMIT</b> <ul style="list-style-type: none"><li>Second Judges Case (1993) → collegium and judicial primacy.</li><li>Third Judges Case (1998) → collegium consultation enlarged.</li><li>Fourth Judges Case (2015) → judicial-independence control of NJAC.</li><li>S.R. Bommai (1994) → federalism and secularism as basic-structure controls.</li></ul> | <b>FEDERAL / RIGHTS IMPACT</b> <ul style="list-style-type: none"><li>Indian judicial review is not borrowed as an unlimited US copy.</li></ul> |
| ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Constitutional supremacy subjects legislation to higher law and judicial review, whereas parliamentary sovereignty locates final ordinary law-making authority in the legislature.                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                |

05

|                                                                                                                                                                                                                                                      |                          |                      |                                |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|----------------------|--------------------------------|
| <b>STAGE 05</b> <b>RIGHTS, DUE PROCESS AND SOCIO-ECONOMIC DIRECTIVES</b>                                                                                                                                                                             |                          |                      |                                |
| <b>RIGHTS, DUE PROCESS AND SOCIO-ECONOMIC DIRECTIVES</b> <b>USA RIGHTS TRADITION + DUE PROCESS + STRONG JUDICIAL</b> <b>FUNDAMENTAL RIGHTS + ARTICLE 32/226 REMEDIES</b> <b>DIRECTIVE PRINCIPLES + DUTIES + REASONABLE-RESTRICTION ARCHITECTURE.</b> |                          |                      |                                |
| <b>IRELAND DIRECTIVE-PRINCIPLE INSPIRATION, ADAPTED TO INDIAN TRANSFORMATIVE GOVERNANCE.</b> <b>SOUTH AFRICA EXPRESS JUSTICIABLE SOCIO-ECONOMIC RIGHTS AND PROPORTIONALITY CONTEXT.</b> <b>"PROCEDURE ESTABLISHED BY LAW" TEXTUAL INFLUENCE.</b>     |                          |                      |                                |
| <b>MANEKA GANDHI (1978) ADDS FAIRNESS, NON-ARBITRARINESS AND REASONABLENESS.</b>                                                                                                                                                                     |                          |                      |                                |
| <b>CONSTITUTIONAL BASIS / ARTICLE</b>                                                                                                                                                                                                                | <b>POWER / PROCEDURE</b> | <b>CHECK / LIMIT</b> | <b>FEDERAL / RIGHTS IMPACT</b> |

- UK parliamentary sovereignty with rights and devolution qualifications.
- USA written supremacy + diffuse judicial review through ordinary courts.
- GERMANY specialised Federal Constitutional Court.
- Supreme Court + High Courts exercise diffuse review, writs and federal adjudication

- Parliament remains Constitution-limited.
- Kesavananda Bharati (1973) → basic structure.
- Minerva Mills (1980) → limited amendment and FR-DPSP harmony.
- First Judges Case (1981) → initial executive primacy.

- Second Judges Case (1993) → collegium and judicial primacy.
- Third Judges Case (1998) → collegium consultation enlarged.
- Fourth Judges Case (2015) → judicial-independence control of NJAC.
- S.R. Bommai (1994) → federalism and secularism as basic-structure controls.

- Indian judicial review is not borrowed as an unlimited US copy.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Constitutional supremacy subjects legislation to higher law and judicial review, whereas parliamentary sovereignty locates final ordinary law-making authority in the legislature.

05

STAGE 05

RIGHTS, DUE PROCESS AND SOCIO-ECONOMIC DIRECTIVES

RIGHTS, DUE PROCESS AND SOCIO-ECONOMIC DIRECTIVES

USA RIGHTS TRADITION + DUE PROCESS + STRONG JUDICIAL

FUNDAMENTAL RIGHTS + ARTICLE 32/226 REMEDIES

DIRECTIVE PRINCIPLES + DUTIES + REASONABLE-RESTRICTION ARCHITECTURE.

IRELAND DIRECTIVE-PRINCIPLE INSPIRATION, ADAPTED TO INDIAN TRANSFORMATIVE GOVERNANCE.

SOUTH AFRICA EXPRESS JUSTICIABLE SOCIO-ECONOMIC RIGHTS AND PROPORTIONALITY CONTEXT.

"PROCEDURE ESTABLISHED BY LAW" TEXTUAL INFLUENCE.

MANEKA GANDHI (1978) ADDS FAIRNESS, NON-ARBITRARINESS AND REASONABLENESS.

| CONSTITUTIONAL BASIS / ARTICLE                                       | POWER / PROCEDURE                                                                     | CHECK / LIMIT                                                             | FEDERAL / RIGHTS IMPACT                               |
|----------------------------------------------------------------------|---------------------------------------------------------------------------------------|---------------------------------------------------------------------------|-------------------------------------------------------|
| USA rights tradition + due process + strong judicial enforcement.    | IRELAND directive-principle inspiration, adapted to Indian transformative governance. | "procedure established by law" textual influence.                         | procedure is not post-Maneka Gandhi (1978) formalism. |
| Fundamental Rights + Article 32/226 remedies                         | SOUTH AFRICA express justiciable socio-economic rights and proportionality context.   | Maneka Gandhi (1978) adds fairness, non-arbitrariness and reasonableness. |                                                       |
| Directive Principles + duties + reasonable-restriction architecture. | JAPAN / INDIA                                                                         | Indian DPSPs are not operationally identical to Ireland                   |                                                       |

| CONSTITUTIONAL BASIS / ARTICLE                                                                                                                                                                                                                            | POWER / PROCEDURE                                                                                                                                                                                                                                             | CHECK / LIMIT                                                                                                                                                                                                                                             | FEDERAL / RIGHTS IMPACT                                                                                 |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------|
| <ul style="list-style-type: none"><li>• USA rights tradition + due process + strong judicial enforcement.</li><li>• Fundamental Rights + Article 32/226 remedies</li><li>• Directive Principles + duties + reasonable-restriction architecture.</li></ul> | <ul style="list-style-type: none"><li>• IRELAND directive-principle inspiration, adapted to Indian transformative governance.</li><li>• SOUTH AFRICA express justiciable socio-economic rights and proportionality context.</li><li>• JAPAN / INDIA</li></ul> | <ul style="list-style-type: none"><li>• "procedure established by law" textual influence.</li><li>• Maneka Gandhi (1978) adds fairness, non-arbitrariness and reasonableness.</li><li>• Indian DPSPs are not operationally identical to Ireland</li></ul> | <ul style="list-style-type: none"><li>• procedure is not post-Maneka Gandhi (1978) formalism.</li></ul> |

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Rights systems differ in text and enforceability, but comparative assessment must examine remedies, limitations and judicial doctrine rather than count enumerated rights alone.

06

STAGE 06

AMENDMENT, EMERGENCY AND ELECTORAL DESIGN

AMENDMENT, EMERGENCY AND ELECTORAL DESIGN

UK POLITICAL FLEXIBILITY

USA HIGH RIGIDITY

INDIA MULTI-TRACK ARTICLE 368

GERMANY ETERNITY CLAUSE

SWITZERLAND REFERENDUM ROUTES.

INDIAN CONTROL

KESAVANANDA BHARATI (1973) BASIC STRUCTURE

| UK political flexibility    | USA high rigidity               | India multi-track Article 368 |
|-----------------------------|---------------------------------|-------------------------------|
| Germany eternity clause     | Switzerland referendum routes.  |                               |
| India/UK FPTP legislatures  | US electoral college Presidency |                               |
| France two-round Presidency | Germany mixed-member            |                               |

| CONSTITUTIONAL BASIS / ARTICLE                                                                                                                                                                                            | POWER / PROCEDURE                                                                                                                                                                                                                                                                                                      | CHECK / LIMIT                                                                                                                                                                                                                                         | FEDERAL / RIGHTS IMPACT                                                                                                                                                                           |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <ul style="list-style-type: none"><li>• UK political flexibility</li><li>• USA high rigidity</li><li>• India multi-track Article 368</li><li>• Germany eternity clause</li><li>• Switzerland referendum routes.</li></ul> | <ul style="list-style-type: none"><li>• INDIAN CONTROL</li><li>• Kesavananda Bharati (1973) basic structure</li><li>• I.R. Coelho (2007) post-1973 Ninth Schedule review.</li><li>• India: Articles 352/356/360 with 44th-Amendment safeguards and review.</li><li>• Germany: post-authoritarian safeguards.</li></ul> | <ul style="list-style-type: none"><li>• France: distinct presidential emergency design.</li><li>• India/UK FPTP legislatures</li><li>• US electoral college Presidency</li><li>• France two-round Presidency</li><li>• Germany mixed-member</li></ul> | <ul style="list-style-type: none"><li>• Switzerland referendums/initiatives.</li><li>• TRAP electoral system follows office and party-system context; no model is universally superior.</li></ul> |

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Amendment design balances adaptability with constitutional identity through different thresholds, while India's basic-structure doctrine adds a judicial limit beyond formal procedure.

07

STAGE 07

SECULARISM AND ACCOUNTABILITY INSTITUTIONS

SECULARISM AND ACCOUNTABILITY INSTITUTIONS

PRINCIPLED ENGAGEMENT, EQUALITY AND REFORM.

NON-ESTABLISHMENT + FREE EXERCISE.

LAICITE AND REPUBLICAN PUBLIC SPHERE.

COOPERATIVE CHURCH-STATE ARRANGEMENTS.

INDIA CAG

CONSTITUTIONAL WESTMINSTER ADAPTATION.

STATUTORY OMBUDSMAN, NOT CONSTITUTIONAL COURT.

| CONSTITUTIONAL BASIS / ARTICLE                     | POWER / PROCEDURE                                      | CHECK / LIMIT                                                                                                    | FEDERAL / RIGHTS IMPACT                         |
|----------------------------------------------------|--------------------------------------------------------|------------------------------------------------------------------------------------------------------------------|-------------------------------------------------|
| India: principled engagement, equality and reform. | Germany: cooperative church-State arrangements.        | Finance Commission: periodic expert federal-transfer body.                                                       | Germany: cooperative church-State arrangements. |
| USA: non-establishment + free exercise.            | India CAG: constitutional Westminster adaptation.      | ECI: central constitutional election management.                                                                 |                                                 |
| France: laicite and republican public sphere.      | Lokpal: statutory ombudsman, not constitutional court. | COMPARATIVE LESSON appointment, jurisdiction, remedy and political context matter more than institutional label. |                                                 |

| CONSTITUTIONAL BASIS / ARTICLE | POWER / PROCEDURE | CHECK / LIMIT | FEDERAL / RIGHTS IMPACT |
|--------------------------------|-------------------|---------------|-------------------------|
|--------------------------------|-------------------|---------------|-------------------------|



Switzerland referendum routes.

Germany: post-authoritarian safeguards.

Germany mixed-member

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Amendment design balances adaptability with constitutional identity through different thresholds, while India's basic-structure doctrine adds a judicial limit beyond formal procedure.

07

STAGE 07

SECULARISM AND ACCOUNTABILITY INSTITUTIONS

SECULARISM AND ACCOUNTABILITY INSTITUTIONS

PRINCIPLED ENGAGEMENT, EQUALITY AND REFORM.

NON-ESTABLISHMENT + FREE EXERCISE.

LAICITE AND REPUBLICAN PUBLIC SPHERE.

COOPERATIVE CHURCH-STATE ARRANGEMENTS.

INDIA CAG

CONSTITUTIONAL WESTMINSTER ADAPTATION.

STATUTORY OMBUDSMAN, NOT CONSTITUTIONAL COURT.

| CONSTITUTIONAL BASIS / ARTICLE                     | POWER / PROCEDURE                                      | CHECK / LIMIT                                                                                                    | FEDERAL / RIGHTS IMPACT                         |
|----------------------------------------------------|--------------------------------------------------------|------------------------------------------------------------------------------------------------------------------|-------------------------------------------------|
| India: principled engagement, equality and reform. | Germany: cooperative church-State arrangements.        | Finance Commission: periodic expert federal-transfer body.                                                       | Germany: cooperative church-State arrangements. |
| USA: non-establishment + free exercise.            | India CAG: constitutional Westminster adaptation.      | ECI: central constitutional election management.                                                                 |                                                 |
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CONSTITUTIONAL BASIS / ARTICLE

India: principled engagement, equality and reform.

USA: non-establishment + free exercise.

France: laicite and republican public sphere.

POWER / PROCEDURE

Germany: cooperative church-State arrangements.

India CAG: constitutional Westminster adaptation.

Lokpal: statutory ombudsman, not constitutional court.

CHECK / LIMIT

Finance Commission: periodic expert federal-transfer body.

ECI: central constitutional election management.

COMPARATIVE LESSON appointment, jurisdiction, remedy and political context matter more than institutional label.

FEDERAL / RIGHTS IMPACT

Germany: cooperative church-State arrangements.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Indian secularism permits principled engagement and social reform, while the American model emphasises non-establishment and free exercise; neither system creates an absolute wall.

08

STAGE 08

INDIA'S HYBRID ADAPTATION AND UPSC SYNTHESIS

INDIA'S HYBRID ADAPTATION AND UPSC SYNTHESIS

INDIAN HYBRID

BRITISH RESPONSIBLE GOVERNMENT + WRITTEN SUPREMACY

US RIGHTS/REVIEW + CANADIAN STRONG-CENTRE FEDERATION

IRISH DIRECTIVES + AUSTRALIAN FEDERAL TECHNIQUES

GERMAN EMERGENCY LESSONS + SOUTH AFRICAN TRANSFORMATIVE COMPARISON.

PRELIMS FIREWALL UNCODIFIED

LEGISLATIVE SUPREMACY IN INDIA FEDERAL

INDIAN HYBRID

British responsible government + written supremacy

US rights/review + Canadian strong-centre federation

Irish directives + Australian federal techniques

German emergency lessons + South African transformative comparison.

| CONSTITUTIONAL BASIS / ARTICLE                       | POWER / PROCEDURE                                                                  | CHECK / LIMIT                                                                                                                                                    | FEDERAL / RIGHTS IMPACT   |
|------------------------------------------------------|------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------|
| INDIAN HYBRID                                        | German emergency lessons + South African transformative comparison.                | DPSP != enforceable right                                                                                                                                        | judicially limited power. |
| British responsible government + written supremacy   | PRELIMS FIREWALL uncoded != unwritten                                              | Rajya Sabha != US Senate.                                                                                                                                        |                           |
| US rights/review + Canadian strong-centre federation | parliamentary != legislative supremacy in India federal != equal upper-house seats | MAINS MATRIX design → commonality → difference → reason → consequence → qualification.                                                                           |                           |
| Irish directives + Australian federal techniques     | President titles != powers borrowed != copied                                      | India's Constitution is original in synthesis: foreign techniques were re-engineered for democratic responsibility, social transformation, federal diversity and |                           |

MECHANISM / VERDICT — India's Constitution is original in synthesis: foreign techniques were re-engineered for democratic responsibility, social transformation, federal diversity and judicially limited power.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Germany reaches a comparable protective objective through an express eternity clause; India's limit is judicially developed.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

SOCIAL CLEAVAGES AND STATE CAPACITY

LEGAL CULTURE AND CONVENTIONS

INTERACTION WITH OTHER CONSTITUTIONAL INSTITUTIONS; AND

LATER JUDICIAL AND POLITICAL DEVELOPMENT.

COMING TOGETHER

PREVIOUSLY AUTONOMOUS UNITS POOL SOVEREIGNTY, OFTEN RETAINING STRONG

HOLDING TOGETHER

OPTIONAL DOCTRINE / CASE

social cleavages and state capacity;

legal culture and conventions;

interaction with other constitutional institutions; and

later judicial and political development.

ADVANCED LIMIT

Coming together: previously autonomous units pool sovereignty, often retaining strong

Holding together: a larger polity constitutionally distributes power to manage diversity

Symmetric federalism: units have broadly similar constitutional powers.

Asymmetric federalism: selected units receive differentiated arrangements because of history,

COMPARATIVE NUANCE

self-rule: constitutionally protected policy space of units; and

shared rule: meaningful unit participation in national decisions.

shift distributive choices from elected branches;

incentivise political actors to avoid responsibility;

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.